

Memo – Disqualification and Reassignment (MCR 2.003(C))

MEMORANDUM IN SUPPORT OF DISQUALIFICATION AND REASSIGNMENT (MCR 2.003(C))

Standard. A judge must be disqualified if the judge is biased or prejudiced for or against a party, or when the judge's impartiality might reasonably be questioned. MCR 2.003(C)(1). The test is objective—whether a reasonable, informed observer would question impartiality. See *Caperton v A.T. Massey Coal Co.*, 556 US 868 (2009) (due process requires recusal when probability of actual bias is too high).

Illustrative Record Examples (A–I)

Application

Under MCR 2.003(C), these objective circumstances—ex parte parenting-time suspension without the required findings and prompt review, aggressive use of show-cause orders in lieu of an evidentiary hearing, a PPO maintained without statutory footing, and docket-handling that obscures defense filings—create at least an appearance of partiality. Disqualification and reassignment are warranted to preserve public confidence and ensure lawful process.